

No.DOPT-1712745799889
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
ESTT.(Estt. B-I)

North Block, New Delhi
Dated 03 November, 2023

OFFICE MEMORANDUM

Subject:- Need for reporting accurate number of vacancies and adjustment of candidates to be appointed based on court directions.

The undersigned is directed to draw attention towards DOPT's OM No. 39018/4/79-Estt.B, dated 13.07.1979 and O.M. No. 24012/34/80-Estt.B, dated 26.02.1981, issuing directions to Ministries/Departments with regard to accurate assessment and reporting of vacancies by them to the Recruiting Agencies.

2. In the recent past, it has been observed that some recruiting agencies are facing difficulties in adjusting the candidates whose dossiers have been returned by the requisitioning Departments on the grounds that vacancy does not/do not exist with them; *albeit* the dossiers had been sent to them based on their requirement reflected in the requisition received at the time of reporting of vacancies.

3. It has also been observed that in some cases Courts have issued directions to Recruiting Agencies to re-consider the candidature of the candidates (which was cancelled earlier on some grounds) and to revise the result accordingly. In such cases, Recruiting Agencies are left with no option but to consider the candidature of such candidates and send their dossier to one of the requisitioning Department, based on the rank and option exercised by the candidates. However, the Department concerned refuses to accept these dossiers on the grounds of non-availability of vacancies with them. Accordingly, the Recruiting Agencies find it difficult to adjust such candidates, resulting in contempt of court directions which ends up in receipt of contempt notices by the higher authorities.

4. In this regard, it may be noted that recruiting agencies select candidates based on the requisition given by the requisitioning Departments. Accordingly, nomination of the selected candidates is sent to the Indenting Departments (on the basis of the vacancies reported by them), keeping in view merit and preference of the candidate. The role of the Recruiting Agencies ends thereafter. Hence, the concerned Ministry/Department cannot avoid the responsibility once the dossier have been sent by SSC, as per requisition given by them. Further, if some candidate is to be appointed on court directions, its cannot be done by the recruiting agencies on their own without the cooperation of the indenting departments.

5. In view of the above, all Ministries/Departments may take note of the following:
- i. Ministries/Departments may re-confirm the number of vacancies to recruiting agencies well before finalization/declaration of result by them. After re-confirmation of vacancies by Ministries/Departments, it would be their responsibility to accommodate the candidates selected against such vacant posts. Vacancies finally intimated by the User Ministries/ Department cannot be changed/varied after the result of the examination has been declared.
 - ii. Ministries/Departments are equally responsible for implementation of directions/Orders of Courts. As such, they may extend full cooperation to recruiting agencies while implementing court directions. Ministries/ Departments may accommodate the nominated candidates based on Court Orders against the available/future vacancies, as per their Roster, instead of returning the dossier to the Recruiting agency on the plea of non availability of vacancy, etc. to avoid any further litigation.
 - iii. In case a Ministry/Department/ Organization is wound up, reorganized, or transferred under the administrative control of another Ministry/Department/Organization, its successor/administrative Ministry/ Department may accept the dossiers. In case, the entire hierarchy of organizations upto the Ministry level is wound up, the Ministry/Department to which its work has been transferred may accept the dossiers. Further, the Departments/ Organizations, which are proposed to be wound up in near future, should abstain from reporting vacancies for future examination(s).

(Sign of Authority)

SP Pant

Director (Pers. Policy-II)

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To

All Ministries/Departments of the Government of India

Copy also to :

1. The Secretary, UPSC, Dholpur House, Shahjahan Road, New Delhi
2. The Chairman, SSC, CGO Complex, Lodhi Road, New Delhi
